

Court No. - 32

Case :- WRIT - C No. - 37926 of 2019

Petitioner :- Premvati

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ashok Kumar

**Counsel for Respondent :- C.S.C., Baleshwar
Chaturvedi**

Hon'ble Shashi Kant Gupta, J.

Hon'ble Neeraj Tiwari, J.

This writ petition has been filed by the petitioners, inter alia, for the following reliefs:

"A. Issue a writ order or direction in the nature of certiorari quashing the impugned notice dated 22.10.2019 issued by the respondent no.3 against the petitioner.

B. Issue a writ, order or direction in the nature of mandamus commanding the respondent no.3 to restore the electric connection of the petitioner within time bound period, which may be fixed by this Hon'ble Court"

Heard learned counsel for the parties and perused the record.

It is pertinent to mention here that petitioner had earlier preferred a Writ Petition No.3942 of 2019 (Premvati Vs. State of U.P. and 2 others) wherein the following order was passed by this Court;

"Heard Sri Ashok Kumar, learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the respondent no.3 and the learned Standing Counsel for Respondents no. 1 and 2.

The petitioner in the writ petition is seeking quashing of the demand notice dated 18.12.2018 whereby a sum of Rs. 7,02,500/- is sought to be recovered from the petitioner towards electricity dues.

The allegation is that during the inspection, the petitioner was

found using electricity unauthorizedly directly from the main line through 'Katiya'.

Since this is a matter of theft, in our opinion, the petitioner has a remedy under Clause 6.8 of the Electricity Supply Code, 2005 by approaching the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd. Kiravali, Agra-respondent no.3.

This writ petition is, therefore, disposed of with a direction that if the petitioner appears before the respondent no. 3- Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd. Kiravali, Agra on 13.02.2019 at 11:00 a.m. along with certified copy of this order as well as his representation/objection, the respondent no.3 shall hear the petitioner and decide the representation/objection of the petitioner, in accordance with law, within a further period of fifteen days.

It is made clear that the court has not adjudicated the claim of the petitioner on merit."

Learned standing counsel as well as Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department states that petitioner has not complied with the order dated 5.2.2019 passed in Writ-C No.3942 of 2019 (Premvati Vs. State of U.P. and 2 others) and failed to appear before the Executive Engineer on 13.02.2019, as such, petition is not maintainable against the same cause of action.

In view of the above, we do not see any justification to interfere in the matter.

The writ petition is accordingly **dismissed**.

Order Date :- 26.11.2019

Junaid